

Balendra Singh v. State of U.P.

Allahabad High Court · Division Bench · 19 July 2022 · WRIT - C No. 10205 of 2022 · **Writ disposed; liberty to object under clause 6.5; coercive recovery stayed eight weeks.**

HEADNOTE

Without examining merits, the Allahabad High Court disposed of a writ challenging a Tehsildar citation for electricity dues and seeking a direction to decide a pending representation, granting liberty to file an objection under para 6.5 of the U.P. Electricity Supply Code, 2005, directing a time-bound decision after hearing, and staying coercive action on the demand for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Balendra Singh challenged a Tehsildar, Hamirpur citation notice dated 12 November 2021 seeking recovery of electricity dues, and sought a mandamus that respondent no.4 decide his 12 January 2021 representation. On 5 July 2022 a Division Bench placed the recovery matter before the appropriate roster. When heard on 19 July 2022, counsel for the Power Distribution Corporation stated that the petitioner could file an objection against the demand, to be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed demand — clause 6.5 objection as alternate remedy

HOLDING

Without expressing any opinion on merits, the writ was disposed of with liberty to submit an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no.4 within four weeks; if so submitted, the objection is to be decided in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action is to be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court declined to quash the Tehsildar citation or decide the pending representation on writ, and instead relegated the petitioner to a clause 6.5 objection before the licensee. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Counsel for the distribution licensee having stated that an objection to the demand would be decided in a time-bound manner, the Court treated para 6.5 as the statutory forum for the disputed recovery and directed a four-week decision after hearing, with short interim protection against coercive action. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE CITATION NOTICE DATED 12.11.2021 AND OF THE UNDERLYING ELECTRICITY DEMAND

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1